

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Souad Moussawi	Team: Team # 2	CCRB Case #: 200914407	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/09/2009 7:30 PM	Location of Incident: Elderts Lane and Glenmore Avenue	18 Mo. SOL 3/9/2011	Precinct: 75		
Date/Time CV Reported Fri, 09/11/2009 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/15/2009 2:47 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Jason Sharp	16369	935731	GANG BN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Bilal Ates	30040	934429	GANG BN
2. POM Thomas Hardell	24109	936730	GANG BN
3. POM Jorge Maldonado	28526	930633	TB DT32

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Sharp	Abuse: PO Jason Sharp searched § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Jason Sharp	Force: PO Jason Sharp used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Jason Sharp	Discourtesy: PO Jason Sharp spoke obscenely and/or rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Jason Sharp	Abuse: PO Jason Sharp threatened § 87(2)(b) with the use of force.	D . Unsubstantiated
E . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) en route to the 75th Precinct Stationhouse.	E . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed the following complaint with the IAB on September 11, 2009 under log # 09-44788 (encl. 3A-B). The complaint was referred to the CCRB on September 15, 2009. On September 9, 2009 at approximately 7:30 p.m. § 87(2)(b) his brother, § 87(2)(b) and his friend, § 87(2)(b) were skateboarding and bike riding in a parking lot on Elderts Lane and Glenmore Avenue in Brooklyn. § 87(2)(b) was stopped by PO Bilal Ates and PO Jason Sharp who were identified via the investigation. § 87(2)(b) approached § 87(2)(b) and the officers to inquire about the stop. The following allegations resulted from the officers' actions:

Allegation A- Abuse of Authority: PO Jason Sharp searched § 87(2)(b) and § 87(2)(b)

Allegation B- Force: PO Jason Sharp used physical force against § 87(2)(b)

Allegation C- Discourtesy: PO Jason Sharp spoke obscenely and/or rudely to § 87(2)(b)

Allegation D- Abuse of Authority: PO Jason Sharp threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

Therefore it is recommended that Allegations A, B, C and D be closed as unsubstantiated.

Allegation E- Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) en route to the 75th Precinct Stationhouse.

§ 87(2)(g) Thus, it is recommended that allegation E be closed as officer unidentified.

Mediation was not possible in this case due to officer identification difficulties.

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Hispanic male. § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 5, 2009 (encl. 4A-D). On September 9, 2009 at approximately 8:30 p.m., § 87(2)(b) was skateboarding with his § 87(2)(b)-old friend, § 87(2)(b) in an empty parking lot behind a train station located at Elderts Lane and Glenmore Avenue in Brooklyn. § 87(2)(b) § 87(2)(b)'s brother, was riding his bike on the street next to the parking lot. § 87(2)(b) and § 87(2)(b) were skateboarding approximately twenty feet away from § 87(2)(b) when § 87(2)(b) observed three unmarked sedans stop near § 87(2)(b). The door of one of the vehicles opened onto § 87(2)(b) and knocked him off of his bike. One of the vehicles was a blue Toyota Camry. § 87(2)(b) did not recall what the other vehicles looked like. Approximately six male officers in plainclothes

exited these vehicles and surrounded § 87(2)(b) § 87(2)(b) then yelled for § 87(2)(b) to approach him.

As § 87(2)(b) neared the scene, he observed an officer, whom he cannot describe, search § 87(2)(b) § 87(2)(b) told the officers to leave § 87(2)(b) alone because he had done nothing. PO Jason Sharp, who was identified via the investigation, was described by § 87(2)(b) as a 6' tall white bald male, weighing approximately 200 pounds. PO Sharp approached § 87(2)(b) pushed him and said, "Back the fuck up." § 87(2)(b) continued telling PO Sharp that he should leave his brother alone. PO Sharp pushed § 87(2)(b) against a gate, placed his forearm against § 87(2)(b)'s throat and said, "Didn't you listen to me. I said back the fuck up." § 87(2)(b) cursed at PO Sharp and PO Sharp pushed § 87(2)(b) to the floor and pulled his left arm behind him and up. § 87(2)(b) moved his other arm behind him when he realized he was being handcuffed. PO Sharp scraped § 87(2)(b)'s face on the floor and caused scratches to his right temple, above his eyebrow. § 87(2)(b)'s glasses fell on the floor and were also bent at this time. PO Sharp then placed § 87(2)(b) against the gate again and § 87(2)(b) said "Let me go Nigger" and "leave me the fuck alone." PO Sharp said, "Shut the fuck up, unless you want me to break your jaw."

During this incident, the remaining officers were watching what happened but did not interfere. Some of the officers were inside their vehicles. PO Sharp then placed § 87(2)(b) in one of the unmarked patrol cars. Before § 87(2)(b) was placed in the vehicle, an officer searched his pockets and removed his belongings and gave them to § 87(2)(b) PO2, an unidentified officer, was described as a bald slim officer in his 30's. He was the operator of this vehicle and PO3, described as a Hispanic male, with a goatee and a medium build, was in the passenger seat. PO2 said, "Why don't you shut the fuck up, unless you want to get into an argument with me."

§ 87(2)(b) was approximately three feet away from § 87(2)(b) during the incident observing the interaction. There were also several other witnesses. However, § 87(2)(b) did not know these individuals.

At the precinct, § 87(2)(b) was released with a summons for § 87(2)(a) 160.50 issued by PO Bilal Ates. § 87(2)(b) went to § 87(2)(b) after the incident because § 87(2)(b). § 87(2)(b) would be able to recognize PO Sharp and PO3 if he were shown pictures.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old Hispanic male. § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 5, 2009 (encl. 4E-H). On September 9, 2009 at approximately 8:30 p.m., § 87(2)(b) was riding his bike in a parking lot behind a train station lot located at Elderts Lane and Glenmore Avenue in Brooklyn. His brother, § 87(2)(b) was skateboarding with his § 87(2)(b)-old friend § 87(2)(b). Three unmarked dark sedans that looked like taxis drove close to him in the parking lot and § 87(2)(b) crashed into one of the vehicles with his bike. Approximately 6-10 white male officers in plainclothes exited these vehicles.

PO Sharp, who was identified via the investigation, was described by § 87(2)(b) as a bald, 6'4" tall muscular white male weighing 300 pounds. PO Sharp picked § 87(2)(b)

§ 87(2)(b) up and threw him on the floor. However, this did not hurt. PO Sharp then searched § 87(2)(b) PO Sharp asked § 87(2)(b) for ID but § 87(2)(b) did not have one. § 87(2)(b) called § 87(2)(b) over by his name. § 87(2)(b) then approached the scene and asked PO Sharp why he was searching his brother. PO Sharp searched § 87(2)(b) forcefully placed him against a gate, threatened to “fucking break” his jaw if he continued to speak. § 87(2)(b) cursed back at PO Sharp saying, “You’re not supposed to fucking do that.” PO Sharp then slammed § 87(2)(b) to the floor, face down, held his face to the floor for two seconds and moved it around, causing a scrape to his right temple above his eyebrow. PO Sharp grabbed § 87(2)(b)’s left arm, put it behind him, and lifted it up. § 87(2)(b) complained that his arm hurt. However, PO Sharp continued to maneuver his arm the same way. § 87(2)(b) was then handcuffed and escorted to the precinct.

§ 87(2)(b) was watching the incident the whole time. The officers asked § 87(2)(b) to stay back and he did. § 87(2)(b) did not say anything. The incident lasted for approximately 25 minutes. § 87(2)(b) would only be able to recognize PO Sharp and one other officer from the scene in photos.

Attempts to Contact Civilians

The undersigned investigator attempted to contact § 87(2)(b) four times between October 29, 2009 and November 30, 2009. A first please call letter was sent to § 87(2)(b) on November 17, 2009. On November 24, 2009 § 87(2)(b) scheduled an interview for November 27, 2009. § 87(2)(b) missed this interview. A missed appointment letter was sent to § 87(2)(b) on November 27, 2009. To date, § 87(2)(b) has not contacted the undersigned investigator and the letters sent to him have not been returned to the CCRB.

On November 9, 2009, the undersigned investigator conducted fieldwork at location of incident, and left canvass letters at the location. To date, no witnesses have come forth.

NYPD Statement(s):

Subject Officer: PO JASON SHARP

- PO Jason Sharp is a § 87(2)(b)-old white male. He is § 87(2)(b) and § 87(2)(b).
- PO Sharp worked with PO Bilal Ates from 5:27 p.m. on September 9, 2009 to 2:00 a.m. on September 10, 2009. They were in plainclothes, assigned to a tan 4-door Sonata and assigned to gang enforcement.

Memo Book

PO Sharp had no memo book entries regarding this incident.

CCRB Statement

PO Sharp was interviewed at the CCRB on March 30, 2010 (encl. 5E-H). On September 9, 2009 at approximately 7:30 p.m., PO Sharp and PO Ates were conducting gang enforcement patrol due to a funeral of a gang member. They were working alone and there were no other officers present for the incident described below. PO Sharp and PO Ates stopped a group of approximately five individuals they observed walking in the area in order to ask them some questions to determine if they were involved in the funeral activities. The individuals were approximately between 15-years-old and 21-years-old. PO Sharp and PO Ates began questioning

these individuals when § 87(2)(b) approached them yelling and cursing, claiming that his brother was one of the individuals stopped. PO Ates then stepped away from the crowd to speak to § 87(2)(b). PO Sharp remained with the five individuals. PO Ates and § 87(2)(b) were approximately ten to fifteen feet away from PO Sharp.

PO Sharp heard § 87(2)(b) yelling and cursing at PO Ates. PO Ates responded by telling § 87(2)(b) to calm down so that he can explain why his brother was stopped. PO Sharp continued paying attention to the group of individuals and he turned and noticed that PO Ates was apprehending § 87(2)(b) who was on the floor at the time. PO Sharp did not observe PO Ates using any force against § 87(2)(b). PO Ates searched § 87(2)(b) before placing him in the patrol vehicle. PO Ates did not search or frisk any other individuals. PO Sharp did not use any force against any individuals or have contact with any individuals on the scene. PO Sharp did not frisk or search any individuals. PO Sharp did not hear PO Ates curse at § 87(2)(b) and he did not do so himself. PO Sharp did not threaten to use any force against § 87(2)(b) and he did not hear PO Ates do so. PO Sharp did not recall § 87(2)(b) wearing glasses or glasses being damaged during the incident. PO Sharp also did not recall an individual running into his vehicle with a bike.

PO Ates placed § 87(2)(b) in the patrol vehicle and took him to the stationhouse where he was released with a § 87(2)(a) 160.50 summons. PO Ates and PO Sharp spoke to § 87(2)(b) in the vehicle on the way to the stationhouse but they did not curse at him. PO Sharp did not recall § 87(2)(b)'s face being injured.

Witness Officer: PO BILAL ATES

- PO Bilal Ates is a § 87(2)(b)-old white male. He is § 87(2)(b) has short black hair, brown eyes and § 87(2)(b).
- On September 9, 2009, PO Ates worked with PO Jason Sharp from 5:25 p.m. to 2:00 a.m. They were assigned to gang suppression because there was a funeral being held for a gang member who was murdered, were in plainclothes and were assigned to an unmarked tan Hyundai sedan.

Memo Book

PO Ates's memo book is summarized as follows: "8:45 p.m. One summons issued for § 87(2)(a) 160.50 Forbell Street and Pitkin Avenue."

CCRB Statement

PO Ates was interviewed at the CCRB on March 3, 2010 (encl. 5A-D). § 87(2)(g)

When PO Ates went to place § 87(2)(b) under arrest, he reached for him and § 87(2)(b) pushed PO Ates's hand away.

Witness Officer: PO JORGE MALDONADO

- PO Jorge Maldonado is a § 87(2)(b)-old Hispanic male. He is § 87(2)(b) has short brown hair, brown eyes and § 87(2)(b).
- On September 9, 2009, PO Maldonado worked from 5:25 p.m. to 2:00 a.m. the following day. He worked with Detective Arroyo. They were both uniformed, assigned to gang enforcement and an unmarked vehicle.

CCRB Statement

PO Maldonado was interviewed at the CCRB on April 20, 2010 (encl. 5M-N). PO Maldonado did not recall this incident.

Witness Officer: PO THOMAS HARDELL

- PO Thomas Hardell is a § 87(2)(b)-old white male. He is § 87(2)(b), has brown hair and hazel eyes and § 87(2)(b). On September 9, 2009, PO Maldonado worked from 5:25 p.m. to 2:00 a.m. the following day. He worked with Detective Arroyo. They were both uniformed, assigned to gang enforcement and an unmarked vehicle.

CCRB Statement

PO Hardell took the rest of the day off on September 9, 2009. He was off duty at 12:00 p.m. and was not present for this incident which occurred later in the day.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Document(s)

SPRINT

- A search for SPRINTS related to this incident yielded negative results (encl. 11D).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 20, 2010 with regard to the incident (encl. 8).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer(s) CCRB History

- PO Sharp has been a member of the service for five years and there is one substantiated CCRB allegation against him for entry and search of premises. The allegation is found in case number 200704116. The NYPD's disposition regarding this allegation is of instructions (encl. 1).

Conclusion

Identification of Subject Officer(s)

PO Sharp acknowledged his interaction with § 87(2)(b) and § 87(2)(b). Additionally, he matched the description provided by § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) Additionally, PO Ates did not match this description at all and thus a clear distinction can be made between the two. PO Ates also acknowledged his interaction with § 87(2)(b) and § 87(2)(b) which was further confirmed by the summons he wrote § 87(2)(b) Finally, both PO Ates and PO sharp state that they initially interacted with the civilians.

Investigative Findings and Recommendations

Allegation A- Abuse of Authority: PO Jason Sharp searched § 87(2)(b) and § 87(2)(b)

Allegation B- Force: PO Jason Sharp used physical force against § 87(2)(b)

Allegation C- Discourtesy: PO Jason Sharp spoke obscenely and/or rudely to § 87(2)(b)

Allegation D- Abuse of Authority: PO Jason Sharp threatened § 87(2)(b) with the use of force.

§ 87(2)(b) and § 87(2)(b) alleged that they were searched by PO Sharp. Although § 87(2)(b) observed § 87(2)(b) being searched, he could not describe the officer who conducted the search. § 87(2)(b) further alleged that PO Sharp used force and profanity against him. PO Sharp and PO Ates denied this allegation. § 87(2)(g)

Therefore it is recommended that Allegations A, B, C and D be closed as unsubstantiated.

Allegation E- Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) en route to the 75th Precinct Stationhouse.

§ 87(2)(b) cannot describe the officer who used profanity when speaking to him en route to the 75th Precinct Stationhouse. § 87(2)(g) Thus, it is recommended that allegation E be closed as officer unidentified.

Team: 2

Investigator: _____	Souad Moussawi	April 30, 2010
Signature	Print	Date
Supervisor: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date